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CASE #	CASE NAME	HEARING NAME
CVRI2202616	MARRON vs GENERAL MOTORS LLC	MOTION FOR ATTORNEYS FEES

Tentative Ruling:

Timeliness of Motion

Defendant first argues, citing *Hatlevig v. General Motors, LLC* (2026) 118 Cal.App.5th 644, Plaintiffs' motion is untimely because it was filed 995 days after the case settled.

The *Hatlevig* court discussed the rules for determining the deadline for a motion for attorney's fees, then stated:

We must next determine the date of dismissal. With exceptions not relevant to this case, when a case settles the plaintiff must serve and file a request for dismissal of the entire case within 45 days. ... If the plaintiff does not do so, the court must dismiss the case 45 days after it receives notice of settlement unless good cause is shown why the case should not be dismissed. ... On June 2, 2023, Hatlevig's counsel notified the trial court the case had settled, and the court ordered a dismissal filed within 45 days. Apparently to satisfy due process requirements, the clerk later mailed the parties notice the case would be deemed dismissed without prejudice on August 15, 2023, unless a dismissal was filed or a party showed good cause why the case should not be dismissed. (See *Lee v. Placer Title Co.* (1994) 28 Cal.App.4th 503, 510, 33 Cal.Rptr.2d 572 [due process requires notice to parties before court may dismiss case 45 days after receiving notice of settlement].) That date came and went, but no dismissal was filed and no good cause was shown why the case should not be dismissed. When a case settles, a dismissal of the action generally follows as a matter of law. ... Hence, consistent with the notice of dismissal, the case was dismissed without prejudice on August 15, 2023.

(*Hatlevig, supra*, 118 Cal.App.5th at 649-650 [internal quotations and citations omitted].)

Here, the case settled in October 2023, and on October 9, 2023, Plaintiff filed a notice of settlement, in which he stated he would dismiss the case by November 27, 2023. Also on October 9, 2023, the Court set an OSC re: dismissal of the action following notice of settlement, which the Court continued *eight* times at the request of Plaintiff's counsel before dismissing the action with prejudice on October 6, 2025, two years after the notice of settlement was filed. Prior to several of the dates set for OSC, counsel for Plaintiff submitted a declaration stating there was good cause for a continuance because "Plaintiff's attorneys' fees, costs, and expenses remain unresolved," and he "intends to file a noticed motion for attorney's fees with the court." (See Decls. Of Matthew Treybig in Response to OSC, dated 2/22/24, 5/23/24, 2/25/25, 6/24/25, and 10/6/25, at ¶¶ 5-6.) Each of these declarations was virtually identical, and no actual

reason was provided for why the issue of Plaintiff's attorney's fees and costs remained unresolved, or why a motion for attorney's fees had not been filed at any time in the preceding two years. (*Ibid.*) Counsel for Plaintiff filed two additional declarations stating the same thing, seeking to continue the OSC re: dismissal set after the Court set aside the dismissal it entered. (See, Decls. Of Matthew Treybig in Response to OSC, dated 3/9/26 and 6/11/26.) Furthermore, in his October 6, 2025 declaration, Treybig stated that he was "diligently working on a motion for attorneys' fees." (Decl. Of Matthew Treybig in Response to OSC, 10/6/25, at ¶ 6.) Despite this, the present motion was still not filed until June 26, 2026, eight-and-a-half months later; five months after the dismissal was set aside; and almost three years after the Court was notified that the case settled. However, while it appears from the record that Plaintiff egregiously and unreasonably delayed filing the present motion, there is no legal basis for finding it is untimely. Unlike in *Hatlevig*, the Court here set aside the dismissal of the action, and at the most recent OSC ordered Plaintiff to file a motion for attorney's fees by June 30, 2026. The motion was filed on June 26, 2026. Thus, it is timely. (See, CRC 3.1702(b), 8.104(1)(a).)

Untimely Opposition

Plaintiff argues Defendant's opposition was untimely and should therefore not be considered. Pursuant to C.C.P. § 1005(b), all papers opposing a motion "shall be filed with the court and a copy served on each party at least nine court days ... before the hearing." The present motion is set to be heard on August 11, 2026. July 29, 2026 is 9 court days prior to August 11, 2026, but the opposition was not filed until July 31, 2026. Therefore, Defendant is correct that the opposition is untimely. However, the Court has discretion to consider an untimely opposition. (See, CRC 3.1300(d); *Slayton v. Superior Court* (2006) 146 Cal.App.4th 55, 58, n. 2; *Kapitanski v. Von's Grocery Co.* (1983) 146 Cal.App.3d 29.) Additionally, challenging a motion or opposition on the merits rather than only objecting to the untimeliness may constitute a waiver of any objection to its untimeliness. (See, *Clark v. Stabond Corp.* (1987) 197 Cal.App.3d 50, 59.) In the present case, the Court considers Defendant's opposition despite it being filed two days late because Plaintiff still had sufficient time to file a substantive reply, so he was not prejudiced by the delay.

Merits

Under Civil Code § 1794(d) (Song-Beverly Act), "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (*Ibid.*) There is no dispute that Plaintiffs are the prevailing party in this case.

At issue in this motion is the reasonableness of Plaintiffs' request. The matter of reasonableness of a party's attorney's fees is within the sound discretion of the trial judge. (*Bruckman v. Parliament Escrow Co.* (1989) 190 Cal.App.3d 1051, 1062.) The

court must determine whether the amount requested is reasonable based on the circumstances of the case, including factors such as the complexity of the case, procedural demands, skill exhibited, and results achieved, and the court may reduce the amount if it is determined to be unreasonable. (*Goglin v. BMW of North America* (2016) 4 Cal.App.5th 463, 470; see also, *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096 [factors considered in determining the reasonableness of a party's attorney fees include the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given and the success or failure].)

In determining the reasonable amount of attorney fees, the court first determines a lodestar figure. (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1242; see also, *Serrano v. Priest* (1977) 20 Cal.3d 25, 48.) Lodestar is calculated by assessing the reasonable rate for comparable services in the local community, multiplied by the reasonable number of hours spent on the case. (*Ibid*; see also, *Concepcion v. Amscan Holdings, Inc.* (2014) 223 Cal.App.4th 1309, 1320.)

The prevailing buyer in a Song Beverly Act action has the initial burden of showing the fees incurred were allowable and reasonably necessary to the conduct of the litigation. (*Goglin, supra*, 4 Cal. App. 5th at 470.) Once the initial burden is met, the burden of proof is on the opposing party to show by admissible evidence that the fees requested were unreasonable, either by the number of hours, the hourly rate, or both. (*Maughan v. Google Technology* (2006) 143 Cal. App. 4th 1242, 1261.)

In the present case, Plaintiffs' counsel's billing records indicate a lodestar figure of \$25,314.50, based on 64.6 hours spent on the case. The rate is unopposed. Defendant makes specific challenges to various items. First, NTA improperly billed 6.9 hours on clerical tasks, which results in a reduction of **\$2,010** (5.1 hours x \$200/hour + 1.8 hours x \$550/hour). Additionally, while there is no question that Plaintiffs' counsel has significant lemon law experience, based on the billing records provided, the counsel's utilization of various forms and canned motions did not result in the significant savings it should have. Based upon GM's specific challenges to the billing records, the following is adjusted:

Work	Hours billed	New Reduced Hours	Hourly Rate	Reduction
Draft motion to compel further responses to RFPs, set 1 and reply	5.0	3.0	\$425	\$850
Draft motion to compel further responses to RFP, set 2 and reply	8.1	3.0	\$350	\$1,785
Clerical tasks/case management	1.5	0	\$400	\$600

OSC related tasks	3.7	0	\$450 ¹	\$1,665
Motion for attorney's fees	4.8	2.5	\$395	\$908
Prepare reply and attend hearing on motion	8.1	2.5	\$495	\$2,772
			Total:	\$8,580

As the OSC hearings and declarations and orders related thereto were only necessary because of Plaintiff's unreasonable delays in filing this motion for almost 3 years, the fees incurred were not reasonable and necessary (OSC related tasks for 3.7 hours). Also, Plaintiff estimates he will incur an additional \$4,000 in attorney's fees for reviewing the opposition, preparing the reply, and attending the hearing on this motion (Prepare reply and attend hearing on motion for 8.1 hours). Using the hourly rate of \$495 (see Decl. of Kevin Jacobson iso Reply), this comes out to approximately 8.1 hours. While counsel states in the reply declaration that he spent 4.8 hours and expects to spend an additional 2 hours to prepare for and attend the hearing, he did not revise the amount sought.

Accordingly, the total stated lodestar is discounted by \$8,580, which results in a reduced fee award of \$16,734.50 (\$25,314.50-\$8,580).

Further, there should be no multiplier. The purpose of the lodestar enhancement is "to bring financial incentives for attorneys enforcing important constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Id.* at 1138.) Here, there is no reason for an enhancement. This was not a complicated case, there was no exceptional quality of work, and the alleged risk due to counsel's contingency fee should already be accounted for in counsel's hourly rate.

The court grants the motion and award attorney's fees in the reduced but reasonable amount of \$16,734.50 (\$25,314.50-\$8,580).

¹ This is a blended rate based upon multiple attorneys, billing at \$395, \$400, \$500, and \$525, doing these tasks.